

Human Rights

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3.1 Introduction

The Digital Services Act (DSA) is primarily a fairness regulation guaranteeing fair process, rules, and practices. For big digital services, it is also a risk management regulation. From the individual's standpoint, however, it gives many people the opportunity to understand, articulate, and advance their rights against the providers of digital services who are in a position of influence despite being non-state actors. In other words, the DSA opens the door for the application of individual freedoms.

This chapter maps the scope and interrelationship between the DSA, the European Union (EU) Charter of Fundamental Rights (CFR), and the Convention for the Protection of Human Rights and Fundamental Freedoms (ECHR). It provides a high-level overview of the EU regulatory landscape and its relation to the DSA and the relevant fundamental rights. The European human rights system is multi-layered. National constitutions are supplemented by the Convention and other international treaties, developed by the Council of Europe—one of the main bodies of the continents' post-war security architecture.

While the EU Charter, adopted in 2009, is more modern and encompassing, the Convention from 1950 and its subsequent Protocols mostly cover civil and political rights.¹ A simple comparison with the EU Charter shows that some human rights, such as freedom to conduct business (Article 16 CFR), right to consumer protection (Article 38 CFR), access to services of general economic interest (Article 36 CFR), integration of persons with disabilities (Article 26 CFR), and the rights of the children and the elderly (Articles 24–25 CFR) are not present in the Convention. In some cases,

¹ A protocol is generally an annex to a Treaty, supplementing the main Treaty text with details and exemptions. See, eg the right to education in Protocol 1, art 2.

the Convention protects the same interests under conceptually different provisions of its own: freedom of and sciences (Article 13 CFR) falls under freedom of expression under the Convention (Article 10 ECHR); right to data protection (Article 8 CFR) under the right to private life (Article 8 ECHR); protection of intellectual property (Article 17(2) CFR) under the right to peaceful enjoyment of possessions (Article 1 Protocol 1 ECHR).

While the EU Charter's catalogue is broader, its application is conditional upon the exercise of the EU law-making powers. The EU Charter thus shadows EU law (Article 51(1) CFR). If the national laws are not within the remit of the EU law, the EU Charter does not apply.² The application of the Convention, in contrast, is not conditional. Viewed from this perspective, the DSA is a general-purpose instrument that will open doors to the EU Charter's application to digital content disputes. It will offer a springboard for civil, political, economic, and social rights for many new situations.

3.1.1 Horizontal vs vertical situations

The key distinction in human rights law is between horizontal situations (non-state actors interfering with each other's rights among themselves) and vertical situations (state actors interfering with the rights of non-state actors). In digital services, it is sometimes difficult to draw these lines clearly. To an independent observer, it is often unclear if a provider is motivated by profit and acting voluntarily, or due to coercion by law. Due to cost-saving or strategic reasons, platforms moderating content might claim to enforce contracts where the impetus comes from law enforcement. This fluidity between horizontal and vertical complicates things a lot.

If a provider acts voluntarily, it should enjoy broad discretion to run its business. It can draft its contracts to its own liking within the limits of law and, at best, must take the human rights of into account. It can be sloppy, arbitrary, or even capricious. However, in a scenario where a provider acts involuntarily when coerced to do so by the state, it cannot be allowed to exceed the discretion that is allowed to the state. Otherwise, by using a non-state agent, state actors could easily usurp more powers for themselves. Thus, knowing *why* providers do what they do is crucial to understanding the constraints under which they operate. The DSA tries to create more transparency partly to allow us to better understand which framework applies.

In legal theory, Balkin argued that digital speech cases often constitute a triangle.³ That is, the state is regulating providers for the sake of policing the user's speech or behaviour. I prefer to call such situations *delegated enforcement*.⁴ Not because the state is conferring powers but because the state is compelling some outcomes. Delegated enforcement turns horizontal disputes into vertical affairs, although an observer might

² For procedural application, see Case C-617/10 *Åklagaren v Åkerberg Fransson* ECLI:EU:C:2013:105.

³ Jack Balkin, 'Free Speech is a Triangle' (2018) 118(7) *Columbia Law Review* 2011.

⁴ Martin Husovec, '(Ir)Responsible Legislature? Speech Risks under the EU's Rules on Delegated Digital Enforcement' (2021) <<http://dx.doi.org/10.2139/ssrn.3784149>> accessed 10 August 2023.

still mistakenly see them as sparring between equals. If a provider removes content because it expects negative legal consequences, the true dispute is between the state that compels the outcome and the individual affected by it, and not with the provider who only gives effect to it. Inherently, there is nothing special about this situation. Very few would think that a government that asks employers to fire employees who hold certain views is not acting vertically. The same would apply to our assessment of sanctions or other interventions. Even if the executioner is a non-state actor who ‘only’ responds to incentives, the actions should be attributed to the state. Otherwise, enforcement by proxy becomes a loophole.

Delegated enforcement situations are increasingly common due to digitisation, which is opening our lives to an ever-increasing number of proxy-regulatory opportunities. Each digital service provides legislatures with a *regulatory platform*. Platforms posing as de facto regulatory vehicles extend the hands of the government. They offer outsourcing of costs along with scale and speed that are hardly matched by administrative bureaucracies or the judiciary.

The DSA tries to address the increased reliance on delegated enforcement in two main ways. First, it introduces universal procedural and other safeguards in the system that apply irrespective of whether the providers act voluntarily or involuntarily. Second, it proclaims very large online platforms and search engines (VLOPs/VLOSEs) as key places for digital gathering. Such places then must manage all sorts of risks posed by their digital spaces. Consequently, for VLOPs/VLOSEs under the DSA, almost every action is a form of delegated enforcement.

Any regulation of digital services can be described as managing conflicts between multiple parties, such as platforms, content creators, their audiences, and potential victims. Each side has a set of fundamental rights working in their favour and wishes to advance them at the expense of the other. For instance, hate speech victims desire faster removals from platforms, citing concerns about their safety and private life, while content creators push back citing free speech interests and the need for due process. The legislatures navigating these multi-party conflicts are often between a rock and a hard place. The courts usually are in an even more difficult position because ‘the most important legal dials and knobs’⁵ require positive legislation and cannot be simply invented by interpretation of human rights law.

3.2 Strasbourg Jurisprudence

The two most significant provisions in digital content disputes are the right to private and family life (Article 8 ECHR) and the right to receive and impart information (Article 10 ECHR). Other important rights include the freedom of assembly (Article

⁵ Daphne Keller, ‘The Three-Body Problem: Platform Litigation and Absent Parties’ (*Lawfare*, 4 May 2023) <<https://www.lawfaremedia.org/article/the-three-body-problem-platform-litigation-and-absent-parties>> accessed 10 August 2023.

11 ECHR),⁶ prohibition of discrimination (Article 14 ECHR),⁷ peaceful enjoyment of possessions (Article 1 Protocol 1 ECHR),⁸ and finally, the right to an effective remedy (Article 13 ECHR).⁹

3.2.1 Speakers, victims, readers, and facilitators

The majority of the European Court of Human Rights (ECtHR)'s digital case law concerns the right to private life and freedom of expression guarantees. The cases are usually brought by speakers (content creators)¹⁰ or their victims¹¹ who are affected by measures imposed on their providers of digital services, such as:

- website blocking imposed on access providers,
- decryption measures imposed on messaging services,¹²
- liability for posting a hyperlink to a third-party video,¹³
- liability for providing a space for other people's comments.¹⁴

Only in a few instances, the cases were brought directly by *providers* of digital services, such as news sites operating comments sections,¹⁵ providers of a messaging service,¹⁶ or owners of piracy websites.¹⁷ All these cases were considered Article 10 ECHR cases. On the other hand, in some cases, the ECtHR rejected complaints by passive readers or

⁶ *Kablis v Russia* App nos 48310/16 and 59663/17 (ECtHR, 30 April 2019) on blocking a social network account of an activist organising a protest.

⁷ *Beizaras and Levickas v Lithuania* App no 41288/15 (ECtHR, 14 January 2020) on the failure to investigate gay-related hate speech by authorities which violates arts 8 and 14 ECHR.

⁸ *Paeffgen GmbH v Germany* App nos 25379/04, 21688/05, 21722/05, and 21770/05 (ECtHR, 18 September 2007) on the cancellation of a domain name found to interfere with art 1 Protocol 1 ECHR, though justified.

⁹ *Vladimir Kharitonov v Russia* App no 10795/14 (ECtHR, 23 June 2020); *OOO Flavus and others v Russia* App nos 12468/15, 23489/15, and 19074/16 (ECtHR, 23 June 2020); *Bulgakov v Russia* App no 20159/15 (ECtHR, 23 June 2020); *Engels v Russia* App no 61919/16 (ECtHR, 23 June 2020).

¹⁰ *Ahmet Yildirim v Turkey* App no 3111/10 (ECtHR 18 December 2012); *Magyar Jeti Zrt v Hungary* App no 11257/16 (ECtHR, 4 December 2018) for the inclusion of hyperlink in an article; *Kablis* (n 6); *Kharitonov* (n 9); *Flavus* (n 9); *Bulgakov* (n 9); and, about an owner of a website with user-generated content: *Engels* (n 9); *Wikimedia Foundation, Inc v Turkey* App no 25479/19 (ECtHR, 1 March 2022); *Ali Ergin Demirhan v Turkey* App no 10509/20 (ECtHR, pending).

¹¹ Art 8 cases, such as *Pihl v Sweden* App no 74742/14 (ECtHR, 7 February 2017) regarding a defamation victim alleging a lack of protection; *KU v Finland* App no 2872/02 (ECtHR, 2 December 2008) regarding the absence of tools in the national law to fight cybercrimes; *Høiness v Norway* App no 43624/14 (ECtHR, 19 March 2019) regarding a defamation victim complaining about lack of protection; *Volodina v Russia (No 2)* App no 40419/19 (ECtHR, 14 September 2019) regarding a cybercrime victim complaining about lack of protection; *Tamiz v UK* App no 3877/14 (ECtHR, 19 September 2017).

¹² *Podchasov v Russia* App no 33696/19 (ECtHR, pending), where a Telegram user complains about being impacted by a de-encryption order.

¹³ *Magyar Jeti Zrt* (n 10).

¹⁴ *Sanchez v France* App no 45581/15 (ECtHR [GC], 15 May 2023).

¹⁵ *Delfi AS v Estonia* App no 64569/09 (ECtHR, 16 June 2015) (Delfi); *Magyar Tartalomszolgáltatók Egyesülete and Index.hu Zrt v Hungary* App no 22947/13 (ECtHR, 2 February 2016) (MTE).

¹⁶ *Telegram Messenger LLP and Telegram Messenger Inc v Russia* App no 13232/18 (ECtHR, pending).

¹⁷ *Fredrik Neij and Peter Sunde Kolmisoppi v Sweden* App no 40397/12 (ECtHR, 19 February 2013) (The Pirate Bay (ECtHR)).

listeners using digital services, such as Last.fm,¹⁸ but accepted the complaints by active users, such as academics trying to watch YouTube.¹⁹

Article 10 guarantees the right of *speakers* to impart information as well as the right of *readers and listeners*, being the public, to receive it.²⁰ The protection of Article 10 applies to the *means of dissemination* along with the *content of information* because restrictions imposed on the former undoubtedly interfere with the readers' right to receive and impart information.²¹ The beneficiaries of protection, therefore, range from passive or more active readers (often dubbed as 'users'), content creators (also sometimes confusingly called 'users'), owners of social media accounts, and website operators, to their technical intermediaries, such as internet access providers and platforms hosting their content or comments.

This diversity in beneficiaries clearly poses some difficulties in navigating and developing the contours of case law. Speakers traditionally engage in editorial content (eg journalists employed by media). For editorial speech, the ECtHR's jurisprudence tries to conceptualise 'responsible journalism' and acceptable duties and responsibilities.²² However, platforms and similar digital services *do not* disseminate their own speech. They provide tools that may be closer or further from the content creators; however, these are still only tools for creating and disseminating speech. Therefore, they *facilitate* the expressions of others.²³ This begs the question of how to apply the older standards from the area of media with editorial content to the 'new media'. The ECtHR claims to resolve this by looking for a 'graduated and differentiated response' for actors who fall within the new notion of media, following the Recommendation of the Committee of Ministers.²⁴ As will be explained below, it is not always clear that the ECtHR actually succeeds in 'graduating and differentiating' the applicable standards. However, the case law is in flux.

Article 8 ECHR, on the other hand, protects victims of torts of defamation,²⁵ hate speech²⁶ or other cybercrimes, such as dissemination of child abuse material²⁷ or other types of 'cyberviolence'.²⁸ The ECtHR is conscious of the fact that Articles 8 and 10

¹⁸ *Akdeniz and others v Turkey* App no 20877/10 (ECtHR, 11 March 2014).

¹⁹ *Cengiz and others v Turkey* App nos 48226/10 and 14027/11 (ECtHR, 1 December 2015).

²⁰ See eg *Observer and Guardian v the United Kingdom* App no 13585/88 (ECtHR, 26 November 1991), para 59; *Guerra and others v Italy* App no 14967/89 (ECtHR, 19 February 1998), para 53.

²¹ See eg *Öztürk v Turkey* App no 22479/93 (ECtHR, 28 September 1999), para 49: 'It applies not only to the content of information but also to the means of dissemination since any restriction imposed on the means necessarily interferes with the right to receive and impart information'; *ML and WW v Germany* App nos 60798/10 and 65599/10 (ECtHR, 28 June 2018), para 89: 'the applicants' right to respect for their private life under Article 8 of the Convention and, on the other hand, the radio station's and publishers' freedom of expression and the public's freedom of information under Article 10'.

²² *Amaghlobeli and others v Georgia* App no 41192/11 (ECtHR, 20 May 2022), para 37.

²³ Facilitation was referenced by the ECtHR in the context of search engines, see *ML and WW* (n 21) para 97.

²⁴ Committee of Ministers, 'Recommendation CM/Rec(2011)7 on a New Notion of Media on 21 September 2011' (Council of Europe 2013).

²⁵ *Høiness* (n 11); *Pihl* (n 11); *Magyar Jeti Zrt* (n 10).

²⁶ *Delfi* (n 15); *Sanchez* (n 14); *Beizaras* (n 7).

²⁷ *KU* (n 11).

²⁸ *Volodina (no 2)* (n 11) paras 17, 18, and 20: the publication of her intimate photographs without consent, impersonation through the creation of fake social-media profiles, and tracking her with the use of a GPS device.

cases represent similar complaint zones and therefore tries to synchronise its case law in the two areas.²⁹

3.2.2 Internet's specificity and experimentation

The starting point of the Strasbourg (and even Luxembourg) case law seems to be the specificity of the internet. As mentioned above, for the ECtHR, digital services facilitating user-generated content must be subject to 'graduated and differentiated'³⁰ regulation that differs from the regulation of editorial media. For top European judges, the special attributes of the internet are its 'accessibility', 'capacity to store and communicate vast amounts of information', its ability to support 'user-generated expressive activity', and its role in 'facilitating the dissemination of information in general'.³¹ At the same time, as emphasised by the Fifth Section of the ECtHR in *ML and WW v Germany*:

Internet sites are an information and communication tool particularly distinct from the printed media, especially as regards the capacity to store and transmit information, and that the risk of harm posed by content and communications on the Internet to the exercise and enjoyment of human rights and freedoms, particularly the right to respect for private life, is *certainly higher* than that posed by the press.³²

The ECtHR is, on the one hand, very sensitive to measures such as whole website blocking, but on the other, so far less willing to be prescriptive with respect to hate speech on digital platforms. In the latter case, it gives the Member States a broader margin to experiment than would be the case in the context of traditional media. The existing case law does not prescribe how to deal with hate speech online, but only how to not deal with it. However, such a position may only be temporary because the Convention is a 'living instrument', and nothing prevents the ECtHR from tightening the noose on the legislatures' choices in the future.³³ If the Court starts with the articulation of minimum standards under Article 8, it must be careful not to clash directly with the complex system envisaged by the DSA.

²⁹ *ML and WW* (n 21) para 92.

³⁰ Committee of Ministers (n 24), Appendix, para 7: 'A differentiated and graduated approach requires that each actor whose services are identified as media or as an intermediary or auxiliary activity benefit from both the appropriate form (differentiated) and the appropriate level (graduated) of protection and that responsibility also be delimited in conformity with Article 10 [ECHR] and other relevant standards developed by the Council of Europe', cited by the ECtHR in *Delfi*, para 113.

³¹ Case C-401/19 *Republic of Poland v European Parliament and Council of the European Union* ECLI:EU:C:2022:297, para 46; The Grand Chamber is citing the ECtHR decision in *Cengiz* (n 19) para 52; and *Kharitonov* (n 9) para 33.

³² *ML and WW* (n 21) para 91 (emphasis mine).

³³ George Letsas, 'The ECHR as a Living Instrument: Its Meaning and its Legitimacy' (2014) <<https://dx.doi.org/10.2139/ssrn.2021836>> accessed 10 August 2023; *Tyrer v United Kingdom* App no 5856/72 (ECtHR, 25 April 1978).

In any case, this broader margin of appreciation has thus far supported the Member States' experimentation with policies that tackle the sensitive topic of hate speech. In two important cases involving liability for storing comments containing *hate speech* posted by others, the ECtHR allowed the Member States also to impose post-publication monitoring obligations to avoid civil³⁴ or even monetary criminal liability.³⁵ In *defamation* cases on the other hand, the ECtHR is much more prescriptive and views general content monitoring obligations as incompatible with freedom of expression.³⁶

3.2.3 Types of expressions

Traditionally, the margin of appreciation of the states is very narrow with respect to political speech on the one hand and very broad for cases involving commercial speech³⁷ and matters of intimate personal convictions within the sphere of morals or religion on the other.³⁸ In *Markt intern Verlag GmbH and Klaus Beermann v Germany*, the ECtHR held that '[t]he Court must confine its review to the question whether the [unfair competition] measures taken on the national level are justifiable in principle and proportionate'.³⁹ The same review of 'justifiable in principle and proportionate' was also adopted in the context of commercial advertising.⁴⁰ In some cases, such as *Mouvement Raëlien Suisse v Switzerland*,⁴¹ the speech can find itself 'in-between' two standards of review. In a case involving a promotional campaign of a supposed UFO religious group, the ECtHR's Grand Chamber applied a broader margin:

The poster campaign in question sought mainly to draw the attention of the public to the ideas and activities of a group with a supposedly religious connotation that was conveying a message claimed to be transmitted by extra-terrestrials, referring for this purpose to a website address. The applicant association's website thus refers only incidentally to social or political ideas. The Court takes the view that the type of speech in question is not political because the main aim of the website in question is to draw people to the cause of the applicant association and not to address matters of political debate in Switzerland. Even if the applicant association's speech falls outside the commercial advertising context—there is no inducement to buy a particular product—it is nevertheless closer to commercial speech than to political speech per se, as it has a certain proselytising function. The State's margin of appreciation is therefore broader.⁴²

³⁴ *Delfi* (n 15).

³⁵ *Sanchez* (n 14).

³⁶ *Hoiness* (n 11); *Pihl* (n 11); *Magyar Jeti Zrt* (n 10).

³⁷ Comprehensively, Dimitrios Doukas, 'Commercial Speech and Freedom of Expression in EU Law: A Paradigm of a Sliding Scale of Review for the European Court of Justice?' (2019) 44(6) *European Law Review* 739.

³⁸ *Mouvement Raëlien Suisse v Switzerland* App no 16354/06 (ECtHR, 13 July 2012), para 61.

³⁹ *Markt intern Verlag GmbH and Klaus Beermann v Germany* App no 10572/83 (ECtHR, 20 November 1989), para 33.

⁴⁰ *Casado Coca v Spain* App no 15450/89 (ECtHR, 24 February 1994), para 50.

⁴¹ *Mouvement Raëlien Suisse* (n 38).

⁴² *ibid* para 62; *VgT v Switzerland* App no 24699/94 (ECtHR, 28 June 2001) paras 57, 70–72, 75, and 79.

This then results in ECtHR's broader deference, as '[t]he Court cannot interfere with the choices of the national and local authorities, which are closer to the realities of their country, for it would thereby lose sight of the subsidiary nature of the Convention system'.⁴³

However, the ECtHR also held that for the citizen, 'advertising is a means of discovering the characteristics of services and goods offered to him'.⁴⁴ Therefore, in some cases, even the speech interests of corporations can prevail over the state's ability to enforce public morals corresponding to religious sensitivities of some groups. In *Sekmadienis Ltd v Lithuania*,⁴⁵ the ECtHR held that the Lithuanian authorities overstepped the margin of appreciation when they banned commercial advertising for simply invoking the names of Jesus and Mary⁴⁶ on the grounds that it was 'incompatible with the principles of a religious person' and cannot be viewed as 'gratuitously offensive or profane, [inciting] hatred on the grounds of religious belief or [attacking] a religion in an unwarranted or abusive manner'.⁴⁷ Similarly, in *Krone (No 3)*,⁴⁸ an injunction issued by the Austrian courts regarding an unfair competition case which effectively banned price comparison of newspapers was found to violate Article 10 based on 'impairing the very essence of price comparison'.⁴⁹

This case law, therefore, suggests a limited review of speech that does not contribute to the public debate and is merely commercial. While advertising and other purely commercial acts still enjoy Article 10 protection, the states have a broader possibility to regulate it as they see fit. Only a 'soft proportionality test' applies in such cases. On the other hand, political speech and non-commercial speech⁵⁰ are protected under a very rigorous proportionality test. In between these two are the cases of commercial speech that primarily contribute to a public debate. The intensity of the scrutiny also changes depending on whether there is a European consensus on a particular issue. If it exists, then the deviation can be scrutinised more closely.⁵¹

3.2.4 Rights of providers of digital services

Information dissemination is very important to freedom of expression. Article 10 undoubtedly protects 'means of dissemination'. With typical editorial speech, the facilitator's protections usually overlap with the speaker's protection. Organisations behind the newspapers or broadcasters that facilitate and invest in editorial speech would be considered metaphorical speakers, although the protected speech originated

⁴³ *Mouvement Raëlien Suisse* (n 38) para 64.

⁴⁴ *Casado Coca* (n 40) para 51.

⁴⁵ *Sekmadienis Ltd v Lithuania* App no 69317/14 (ECtHR, 30 January 2018).

⁴⁶ *ibid* paras 7, 8, and 9.

⁴⁷ *ibid* para 77.

⁴⁸ *Krone Verlag GmbH & Co KG v Austria (No 3)* App no 39069/97 (ECtHR, 11 December 2003).

⁴⁹ *ibid* para 33.

⁵⁰ *Open Door and Dublin Well Woman v Ireland* App no 14234/88 (ECtHR, 23 September 1992), para 80: Irish ban on information about abortion clinics abroad, including if provided by non-profit counselling services.

⁵¹ *Casado Coca* (n 40) paras 54–55; *Stambuk v Germany* App no 37928/97 (ECtHR, 17 October 2002), para 40.

from their employees. Given that they provide organisational support for creating and sharing of expressions, it was natural to treat them as speakers.

However, even in the offline world, a subset of actors in the ecosystem, such as printers, booksellers, cinema owners, or transport companies, would be harder to categorise as speakers. They do not express *their* views. At most, they help materialise the freedom of expression of other individuals through their commercial services. Yet, their freedom to operate a business is crucial to enabling such freedoms, given their role in facilitating the expression and dissemination of other people's ideas and expressions. They print them and deliver them to customers. In the digital age, the number of such facilitators has skyrocketed. To avoid the creation of loopholes in the effective protection of Article 10, these actors cannot be left unprotected. Otherwise, the governments could target them instead to halt the dissemination of undesirable ideas and expressions.

With the rise of non-editorial speech, which originates from millions of individuals, digital facilitators have multiplied and gained tremendous importance. Ensuring their protection under freedom of expression laws has become a vital concern for digital speech infrastructure because speakers depend on facilitators' support. No content can be published online without a hosting service, nor can it be reached without an internet access provider. However, much like printers and booksellers, web hosting companies storing third-party content or internet access providers channelling consumers to websites are hardly speakers.

Under the Convention, it is unclear if such 'facilitators' enjoy their own protection under Article 10 or whether their protection is only a derivative of speakers' protection. Surprisingly, case law does not address this detail.⁵² Under ECtHR case law, facilitators are simply assumed to be entitled to Article 10 protection for third-party content, often without much explanation from the ECtHR. What is clear, however, is that the facilitators' status as companies does *not* limit the protection offered by Article 10. As noted by the ECtHR in *Autronic AG v Switzerland*, 'neither *Autronic AG*'s legal status as a limited company nor the fact that its activities were commercial nor the intrinsic nature of freedom of expression can deprive *Autronic AG* of the protection of Article 10'.⁵³ Article 10 applies to 'everyone', irrespective of whether they are natural or legal persons.⁵⁴

There are two broad groups of cases concerning digital providers as facilitators: (1) platforms that usually store third-party content or at least provide other tools that

⁵² There has not been a single case grappling with these entities in the relevant case law. In the US, the leading case addresses facilitators' protections concerning booksellers—*Smith v California*, 361 US 147 (1959). Although there is no equivalent case law of the ECtHR on bookseller's liability, there are cases regarding traditional publishers' art 10 rights—*Handyside v the UK* App no 5493/72 (ECtHR, 7 December 1976). *Handyside* is the leading case in which the applicant was a traditional book publisher, and the confiscation of its book was considered an interference with the publisher's art 10 rights. Although the case resulted in a no-violation decision, it is one of the first freedom of expression cases, and it set a high standard for such cases, which is still applied today.

⁵³ *Autronic AG v Switzerland* App no 12726/87 (ECtHR, 22 May 1990), para 47. Prior to this case, the ECtHR had already stated that art 10 applies to profit-making companies. See eg *The Sunday Times v UK* App no 6538/74 (ECtHR 26 April 1979); *Markt intern* (n 39).

⁵⁴ On corporation as rights-bearers, Turkuler Isiksel, 'Corporate Human Rights Claims Under the ECHR' (2019) 17 *Georgetown Journal of Law and Public Policy* 979.

process it, such as search engines, and (2) providers of digital infrastructures, such as the internet access, domain name system, and encrypted messaging services.

The second group of cases is rarely filed by providers directly. The complainants are usually speakers, the owners of the website that was blocked, or readers, the passive users of blocked websites. The only exception to date is the pending case of *Telegram v Russia*, where a messaging service complained against the imposition of encryption backdoors on the basis of Article 10.⁵⁵

The ECtHR's case law contains three leading cases on the liability of websites for comments posted on *platforms*. Rather confusingly, the first Grand Chamber case, *Delfi v Estonia* (2015),⁵⁶ represents 'the hate speech exception' to the general approach underlying the case law. The contents in question were comments under news articles containing hate speech and other 'clearly unlawful speech.'⁵⁷ The authors of these comments were anonymous, and once the comments were posted, only the platform could remove them.

It was common ground between parties that any liability imposed on *the platform* for user-generated content constituted an interference with *its rights* under Article 10.⁵⁸ In its decision, the Grand Chamber set a very broad margin of appreciation for the Member States. It devised a balancing test and ultimately expressed that professional news websites can be held liable under national law if they fail to scrutinise content in the comments even *before* they are notified about such comments by affected victims. In doing so, it accepted the interpretation of the Estonian tort law that imposed civil liability before notification of illegal hate speech as compatible with Article 10, even though this reading would have run afoul of EU statutory laws then, such as the ECD's liability exemptions.⁵⁹ The judgment seemed to have implied that the Council of Europe's Member States, many of whom were also EU members, would be free to impose monitoring obligations on platforms concerning third-party content.

The strong criticism of the judgment led a later president of the ECtHR, Judge Robert Spano, to write extra-judicially about the case in 2017, claiming that 'the case is to some extent unique and unsuitable as a basis for broad interpretive conclusions over and above the facts presented by the case.'⁶⁰ The follow-up case law of the Court proved this to be true, although *Delfi* did not entirely disappear as a framework of reference.⁶¹ The general approach of the Court is now represented by numerous section decisions that apply the *Delfi* test. The most important of them is *MTE v Hungary* (2016).⁶² In this case, the Court acted much more prescriptively to give effect to Article 10 rights. It

⁵⁵ *Telegram Messenger LLP* (n 16).

⁵⁶ *Delfi* (n 15).

⁵⁷ *ibid* 110.

⁵⁸ *Delfi* (n 15) para 181: 'The Court notes that it was not in dispute between the parties that the applicant company's freedom of expression guaranteed under Article 10 of the Convention had been interfered with by the domestic courts' decisions. The Court sees no reason to hold otherwise.'

⁵⁹ The Member States of the EU were constrained then by the ECD and its liability provisions and, today, by similar provisions under the DSA.

⁶⁰ Robert Spano, 'Intermediary Liability for Online User Comments under the European Convention on Human Rights' (2017) 17(4) Human Rights Law Review 665, 679.

⁶¹ *Sanchez* (n 14).

⁶² *MTE* (n 15).

endorsed as constitutionally necessary the liability model (but not the details), which both the E-Commerce Directive (ECD) and the DSA adopt, based on the idea of shared responsibility for the harms and wrongs in the digital ecosystem. For platforms hosting content, this shared responsibility is known as the notice and takedown (or action) choreography.

In *MTE*, the Fourth Section of the Court rejected far-reaching monitoring duties due to their chilling effect on the freedom of expression on the internet. It ruled that ‘the notice-and-take-down-system could function in many cases as an appropriate tool for balancing the rights and interests of all those involved’.⁶³

In contrast with *Delfi*, the comments in *MTE* did not amount to speech inciting hate and violence. More importantly, the users were able to modify their comments once they were published. The authors of comments thus had more agency to do the right thing on their own. In addition, the for-profit criterion that weighted against the provider in *Delfi* remained unaddressed.⁶⁴ In *Delfi*, the case concerned a large, professionally managed internet news portal that ran on a commercial basis, published news articles of its own and invited its readers to comment on them; the Grand Chamber expressly stated that it did not concern other internet fora, such as social media platforms.⁶⁵

MTE soon became the general approach that was endorsed by numerous subsequent cases, including those filed on the basis of Article 8 ECHR, such as *Pihl v Sweden* (2017),⁶⁶ *Tamiz v United Kingdom* (2017),⁶⁷ and *Høiness v Norway* (2019).⁶⁸ In all these cases the applicants tried to argue that a state was in breach of its positive obligation under Article 8 as it failed to protect their right to reputation by *not* holding intermediaries liable for third-party comments. All three cases, although section judgments only, support the reading that *Delfi*’s broadened margin of appreciation applies *only* when speech includes hate or incitement to violence. The commercial character of the platforms constantly seems to be de-emphasised, and *Delfi*’s role of eliciting comments in the context of its professional editorial activities is emphasised instead.

This continuous qualification of the *Delfi* judgment is also confirmed by Judge Spano in his 2017 article.⁶⁹ He reconciled *MTE* and *Delfi* by confirming that the Court only acted carefully to allow national experimentation and that the Grand Chamber endorsed the notice and takedown system as a primary vehicle for resolution of the digital content disputes. He said:

⁶³ *ibid* para 91 (presented as an application of the Grand Chamber decision in *Delfi*).

⁶⁴ *ibid* paras 5, 8–10, and 14. *MTE* and *Index* were joint applicants.

⁶⁵ *Delfi* (n 15) para 116; *Tamiz* (n 11) para 85.

⁶⁶ *Pihl* (n 11), regarding user-generated comments on a blog, the case was held inadmissible by the Third Section.

⁶⁷ *Tamiz* (n 11), regarding user-generated comments on a blog post hosted on a blogging platform, the case was held inadmissible by the First Section.

⁶⁸ *Høiness* (n 11), regarding user-generated comments, the Second Section found no violation.

⁶⁹ Spano (n 60).

[I]t may be argued that in *Delfi AS*, by in some sense encouraging Contracting States to consider the beneficial value of the notice-and-take-down system as a suitable mechanism for balancing the relevant conflicting interests, the Court adopted a middle ground between two diametrically opposing viewpoints on the regulation of the Internet, one advocating for an environment relatively free from regulation of on-line conduct and the other campaigning for a regulated Internet where the same legal principles apply both online and offline.⁷⁰

While one can disagree with his characterisation of the actual problem, as the *MTE* line of cases hardly can be portrayed as ‘relatively free from regulation’, his point about national experimentation is crucial. The judges, faced with their first case on this novel matter, were simply unsure about how to approach it and did not want to put a strait-jacket on their future judgments. Hence, they decided to make room for Member State legislatures. Unfortunately, the collateral consequence of this hesitancy is the widely assumed message among the public that the platform *ought* to be liable for comments posted by users—which evidently grossly mischaracterises the supposed motivations behind the judgment.

The test established in *Delfi* to determine the lawfulness of facilitator liability under Article 10 ECHR was subsequently reformulated in *MTE* as the following set of criteria: (i) the context of the comments, (ii) the measures applied by the applicant to prevent or remove the comments, (iii) the liability of the actual authors of the comments as an alternative to the facilitator’s liability, (iv) the consequences of the domestic proceedings for the applicant, and (v) the consequences of the comments for the injured party.⁷¹

In 2023, the Grand Chamber dealt with liability for the comments of others again in *Sanchez v France*.⁷² It reviewed a Fifth Section decision which found that the French decision imposing criminal monetary liability on a politician for unlawful third-party comments published on the Facebook profile he operated was sound. *Sanchez* offered an opportunity for the Court to refine the *Delfi* test and to confine the original exception within a very narrow context.⁷³ Unfortunately, the Court arguably only muddled the waters further. In *Sanchez*, the politician operating the Facebook profile was only specifically notified about one of two unlawful comments, which he did not incite in any way. French courts held the politician liable for the notified comment its author took down within 24 hours and for failing to remove the related un-notified comment in the same discussion thread.

In the reasoning of the Court, it is clear that the majority considered the provider to be put on notice with respect to both comments. However, as pointed out by the dissent, they ignored the extremely short time window for the first comment and the lack

⁷⁰ *ibid* 679.

⁷¹ *MTE* (n 15) paras 69 and 84.

⁷² *Sanchez* (n 14).

⁷³ European Information Society Institute, ‘Third-Party Intervention in re *Sanchez v. France*’ (*EISI*, 22 March 2022) <<https://husovec.eu/wp-content/uploads/2022/03/Final-web.pdf>> accessed 10 August 2023.

of specific notification of the second comment. The judges implied in *Sanchez* that at least after acquiring some knowledge of the situation, the provider of the forum, in this case, an owner of a profile on social media, should have investigated related potential unlawful acts. This outcome is not in line with the liability exemptions of the DSA,⁷⁴ which require much more specific knowledge before they strip liability exemptions. However, the *Sanchez* ruling cannot be cited as supporting the imposition of general monitoring obligations either.

Sanchez is probably best summarised by the following passage from the ruling:

As the Internet has become one of the principal means by which individuals exercise their right to freedom of expression ... the Court is of the view that interferences with the exercise of that right should be examined particularly carefully, since they are likely to have a chilling effect, which carries a risk of self-censorship. Nevertheless, the identification of such a risk must not obscure the existence of other dangers for the exercise and enjoyment of fundamental rights and freedoms, in particular those emanating from unlawful, defamatory, hateful or violence-inciting remarks, which can be disseminated as never before ... For this reason the possibility for individuals complaining of defamatory or other types of unlawful speech to bring an action to establish liability must, in principle, be maintained, to constitute an effective remedy for the alleged violations ... The Court observes that, at the relevant time, the holder of a Facebook account used for non-commercial purposes was not fully able to control the administration of comments. In addition to the fact that there was no automatic filtering process available—although it had been possible to remove public access ...—the effective monitoring of all comments, especially in the case of a very popular account, would have required availability or recourse to significant, if not considerable, resources. Nevertheless, to exempt producers from all liability might facilitate or encourage abuse and misuse, including hate speech and calls to violence, but also manipulation, lies and misinformation. In the Court's view, while professional entities which create social networks and make them available to other users necessarily have certain obligations ..., there should be a sharing of liability between all the actors involved, allowing if necessary for the degree of liability and the manner of its attribution to be graduated according to the objective situation of each one.⁷⁵

The ECtHR's case law is motivated by two diametrically opposed but similarly undesirable effects: the chilling effects caused by liability and the lack of right to effective remedy of victims. The Court's starting point is that those who facilitate other people's expressions, such as platforms or owners of profiles on social media, must bear their part of the shared responsibility for the resulting harm done to others. The more professional or better equipped they are, the more responsibility they have. Given that the

⁷⁴ Chs 6–7.

⁷⁵ *Sanchez* (n 14) paras 184–85 (emphasis mine).

46 Member States of the Council of Europe might each have different pieces of legislation to deal with such issues, the approach is usually very cautious in such sensitive areas.

In my view, the existing Strasbourg case law can be summarised as follows.⁷⁶

The ECtHR generally views the notice and takedown choreography as an appropriate balancing tool for the rights of victims, speakers, and platforms. This is why all attempts so far by victims to invoke their rival Article 8 rights against the Article 10 rights of speakers and platforms have failed when they tried to argue that the state shall hold platforms liable *prior to* obtaining knowledge about unlawful content by notification.⁷⁷ The ECtHR thus distributes the onus between victims (who must tell platforms about their grievances), platforms and their active account holders (who must investigate them swiftly), and perpetrators of harm (who are ultimately responsible). If the countries impose liability on facilitators prior to knowledge, platforms themselves can claim a violation of their Article 10.

However, in cases where the speech at stake is hate speech or incitement to violence and the platform had invited comments (but had not instigated them) in the context of its professional editorial activity (eg as a newspaper or politician), the states are permitted, as far as Article 10 is concerned, to impose duties and liability prior to such notification as well, under some circumstances. But this does not mean that in such cases, the states are *required* to do so in order to uphold Article 8 rights. *Delfi* thus only remains an option for the Member States. The case law also does not say that such permitted liability automatically means joint liability for damages caused by comments. The ECtHR reserves the ability to study the proportionality of legal consequences in each specific case. After all, even accountability obligations imposed by the DSA are a form of liability and thus must pass such a test.

Finally, the *Sanchez* ruling shows that the knowledge-acquisition process for the purposes of Article 10 should not be automatically equated with high standards under the DSA. Where the EU's DSA requires specific knowledge about illegality,⁷⁸ the Strasbourg jurisprudence seems much more flexible, but its exact legal standard remains unclear. Nevertheless, the ECtHR clearly continues to draw the distinction between aware and unaware facilitators of unlawful speech by others, the latter of which can be proportionally sanctioned, albeit only exceptionally. Figure 3.1 describes the Convention and its constraints.

The Member States of the Council of Europe, which are also members of the European Union, are additionally constrained by the EU Charter and, legislatively, by the DSA. The ECtHR case law is useful for the DSA discussions in two main ways. First, it provides a backdrop for the CJEU when developing the constitutional ceiling

⁷⁶ See more Martin Husovec and others, 'Grand Confusion After Sanchez v. France: Seven Reasons for Concern about Strasbourg Jurisprudence on Intermediaries'. *Maastricht Journal of European and Comparative law* (2024, forthcoming).

⁷⁷ This does not rule out that cases of incitement could impose liability in such cases. Knowledge is part of the very act of incitement which goes hand in hand with intent.

⁷⁸ Ch 7.

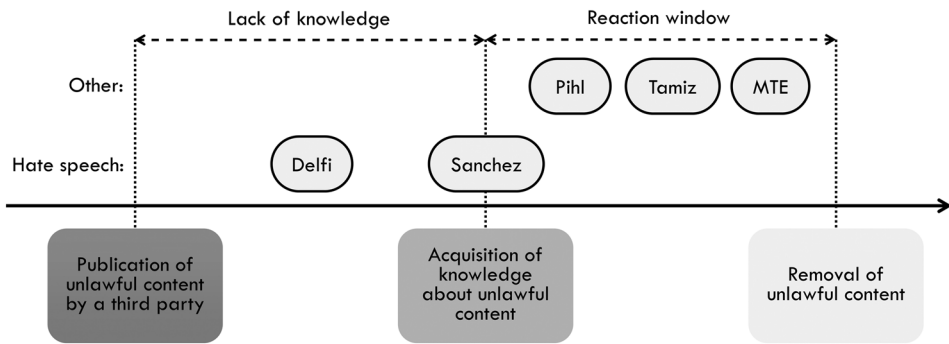


Figure 3.1 ECtHR intermediary liability constraints

under the EU Charter, which might go beyond the CJEU due to common tradition and existing secondary law. Secondly, ECtHR considerations arguably remain valid under the DSA's due diligence obligations, such as risk mitigation by VLOPs and VLOSEs. I will argue throughout the book that the principle of shared burden for social harms⁷⁹ should, in fact, be one of the defining principles that helps us with our understanding of not only the DSA's liability rules but also its accountability rules.

3.3 Luxembourg Jurisprudence

As noted earlier, unlike the Convention, the EU Charter applies only when EU law applies (Article 52(1) CFR). This means that secondary legislation usually serves a dual purpose. First, it positively harmonises a particular area of law by stipulating common solutions. Second, it opens the doors to assessing the problems within such areas by the EU Charter. The latter effect has proven much more important than simply serving as a check on the EU legislature's law-making powers. The CJEU has repeatedly reframed and reinterpreted problems and solutions to them from *within* the EU legal framework. Fundamental rights thus act as more than mere moderators of excess, serving as true guiding principles and lenses through which the CJEU develops the law.

It is expected that the DSA will be strongly shaped by the EU Charter for two main reasons. Firstly, its wide scope opens the door to EU law for many types of content disputes, ranging from the removal of unlawful content and content moderation practices of platforms to due diligence obligations of VLOPs. Since they regulate all types of digital content, the scope is essentially only limited by the concept of the services where such phenomena take place. Secondly, and also relatedly, such norms are often worded very broadly or use open-ended terms, such as an obligation to put in 'place reasonable, proportionate and effective mitigation measures, tailored to the specific systemic

⁷⁹ Ch 21.

risks⁸⁰ and to act in 'diligent, objective and proportionate manner'⁸¹ and in 'due regard to fundamental rights'.⁸²

Another important consequence will be that the DSA will open the door for the horizontal effect of EU fundamental rights.⁸³ Under a directly applicable regulation, obligations to act in due regard to fundamental rights could be interpreted as a general clause for such indirect effect. This will increase the importance of the fundamental rights framework for fleshing out the most essential obligations that some services are asked to observe in their daily operations.

While the DSA is a very broad horizontal instrument, it does not capture the entire ecosystem of digital services as its name might suggest. The DSA mostly captures the obligations for content-layer services closer to the recipients of the service. At the moment, this is where most content disputes take place. The fundamental rights that are most likely to shape the DSA framework are the freedom to conduct the business of platforms (Article 16 CFR), the right to freedom of expression of readers and/or speakers (Article 11 CFR), and many conflicting rights of victims, such as the right to private life, data protection, consumer protection, protection of children, and so on.

An exhaustive debate on the human rights dimension of the rights of victims is beyond the scope of this book. The broad range of the rights at stake makes generalisations very difficult and can probably only be properly analysed separately. The conflicting rights often offer different justifications to limit the rights and freedoms of platforms, content creators (speakers), and their readers.⁸⁴

3.3.1 Freedom of expression of speakers

When content creators upload content on platforms, they exercise their freedom of expression. As I have highlighted in the context of the Convention, such expressions can receive different protections depending on the type of speech and how much they contribute to the public debate. Commercial speech, by definition, receives less protection than political speech. While the CJEU has accepted equivalence of Article 11 CFR with

⁸⁰ DSA, art 35.

⁸¹ DSA, art 14.

⁸² DSA, Rec 51.

⁸³ On the horizontal effect of fundamental rights, see Amélie Heldt, *Intensivere Drittwirkung: die mittelbare Drittwirkung der Meinungsfreiheit in Öffentlichkeiten der digitalen Gesellschaft: eine verfassungsrechtliche, rechtsvergleichende und interdisziplinäre Analyse* (Mohr Siebeck 2023).

⁸⁴ In some cases, even the same rights might clash, such as when entrepreneurial content creators clash with platforms (both invoking art 16 CFR) or when victims and readers clash about the tools that might be used to protect them against the abuses of speakers (both invoke art 7 CFR). Another example is when the speech interests of platforms, or even their advertising clients, and their content creators clash when defining what is the legal content that should be de-ranked (both invoking art 11 CFR).

Article 10 ECHR,⁸⁵ the CJEU's case law particularly 'falls behind the standards of protection afforded by the ECtHR to commercial speech.'⁸⁶ It has been criticised for lacking 'a systematic or consistent scrutiny of interferences' with commercial speech and for generally assuming that 'commercial speech makes no (significant) contribution to public discourse and constitutes a threat to pluralism.'⁸⁷ Unlike the Convention, the EU Charter also highlights the prominence of the freedom of arts and sciences (Article 13 CFR), and the obviously related rights of assembly (Article 12 CFR), thought, conscience, and religion (Article 10 CFR). Moreover, in the EU context, the freedom to conduct business has a special place and may apply to situations when content creators act as businesses.

In *Poland v Council/EP*, the CJEU broadly incorporated the ECtHR's internet case law by holding that:

Article 10 ECHR guarantees freedom of expression and information for everyone and applies not only to the content of information, but also to the means of its dissemination, for any restriction imposed on the latter necessarily interferes with the freedom to receive and impart information. As that court has pointed out, the internet has now become one of the principal means by which individuals exercise their right to freedom of expression and information. In the light of their accessibility and their capacity to store and communicate vast amounts of information, internet sites, and in particular online content-sharing platforms, play an important role in enhancing the public's access to news and facilitating the dissemination of information in general, with user-generated expressive activity on the internet providing an unprecedented platform for the exercise of freedom of expression.⁸⁸

The CJEU also incorporated the ECtHR's concept of prior restraints, which describes a scenario in which speech is limited before it can be disseminated. It notes that while such prior restraints are not absolutely prohibited, they must be carefully assessed because they 'pose such a risk to compliance with that fundamental right that a particularly tight legal framework is required.'⁸⁹ For instance, the CJEU has classified filters that block content automatically upon upload as such prior restraints. However, its review of the strength of the legal safeguards that the EU legislature must provide can still be seen as relatively weak.⁹⁰

⁸⁵ Case C-163/10 *Criminal Proceedings against Patriciello* ECLI:EU:C:2011:543, para 31; Case C-157/14 *Neptune Distribution SNC v Ministre de l'Économie et des Finances* [2016] 2 Common Market Law Review, 24, paras 63–65; Case C-547/14 R (*on the application of Philip Morris Brands SARL*) v *Secretary of State for Health* ECLI:EU:C:2016:325, paras 147–48.

⁸⁶ Doukas (n 37).

⁸⁷ *ibid.*

⁸⁸ *Poland* (n 31) para 46.

⁸⁹ *Poland* (n 31) para 68.

⁹⁰ Martin Husovec, 'Mandatory Filtering Does Not Always Violate Freedom of Expression: Important Lessons from *Poland v Council and European Parliament*' (2023) 60(1) Common Market Law Review 173.

3.3.2 Freedoms of providers

Luxembourg judges tend to conceptualise the rights of providers very differently from the Strasbourg judges. To date, the CJEU has not considered the *speech* interests of providers in a single case. Since *Google Spain* and its subsequent case law,⁹¹ platforms and infrastructure providers can only invoke economic interests. While restricting content on their services can trigger interference with freedom of expression, those rights are only thematised with respect to content creators and never to providers themselves. In *Poland*, the CJEU confirmed this again.⁹² This is in stark contrast to ECtHR case law, which analyses the same interferences as limits on the provider's freedom of expression.⁹³

While this might appear as a minor doctrinal difference, since the freedom of expression of users (ie both speakers and readers) potentially remains present in the balancing exercise, the consequences can be dramatic if users, as parties absent in the litigation, are not able to present their case. The CJEU famously held in *Google Spain* that '[data protection] rights *override*, as a rule, not only the economic interest of the operator of the search engine but also the interest of the general public in finding that information upon a search relating to the data subject's name'.⁹⁴ This framing, which arguably overemphasises the economic interests of platforms and downplays their structural importance as continuous speech infrastructure, then discounts the weight of the societal contribution of search engines to the freedom to receive information, form opinions and express them.⁹⁵ Although subsequent case law has shown that the CJEU is not insensitive to speech concerns in the context of the right to be delisted,⁹⁶ any framing by the CJEU in past cases already sends a signal to the Member State courts or authorities.⁹⁷

Freedom to conduct business, the right that is mostly associated with providers, is an unusual right in the international fundamental rights toolbox.⁹⁸ Its origins in European case law can be traced to preliminary rulings of the German courts reviewing the validity of EU actions. The CJEU responded to them often by including economic considerations under the so-called general principles of the EU, which were meant to supplement the non-existent EU fundamental rights framework prior to the EU Charter.⁹⁹ The inclusion of Article 16 in the EU Charter signalled a possible transition

⁹¹ Case C-131/12 *Google Spain SL and Google Inc v AEPD and Mario Costeja González* ECLI:EU:C:2014:317 (*Google Spain*).

⁹² *Poland* (n 31) para 90.

⁹³ *Delfi* (n 15); *The Pirate Bay* (ECtHR) (n 17); *Telegram Messenger LLP* (n 16).

⁹⁴ *Google Spain* (n 91) para 97 (emphasis mine).

⁹⁵ Joris van Hoboken, *Search Engine Freedom: On the Implications of the Right to Freedom of Expression for the Legal Governance of Web Search Engines* (Kluwer Law International 2012).

⁹⁶ Case C-460/20 *TU and RE v Google LLC* ECLI:EU:C:2022:962, para 60ff.

⁹⁷ See for instance, the decisions by the German Federal Constitutional Court: BVerfG v 6 November 2019—1 BvR 276/17; BVerfG v 6 November 2019—1 BvR 16/13.

⁹⁸ Steve Peers and others, *The EU Charter of Fundamental Rights: A Commentary* (Hart Publishing 2014) 438, 463.

⁹⁹ See for instance, where the German court examined an EU regulation in light of the freedom of disposition in trade, economic liberty, and freedom of action: Case C-11-70 *Internationale Handelsgesellschaft*

of these principles¹⁰⁰ to a full-fledged right, although the EU Charter still refers to it only as ‘freedom’ both in the provision and its section name.¹⁰¹

Historically, unlike classic civil and political rights, socio-economic rights were meant to be construed as mere ‘principles’ in the EU Charter.¹⁰² Their primary goal was to inform policy-making by the *legislature*. As noted by Lord Lester of Herne Hill, it is to be doubted that judges have any mandate or special expertise to determine how national resources should be allocated between different priorities.¹⁰³ However, after a little over ten years, it became clear that Article 16 CFR now forms an important part of the fundamental rights catalogue that actually tempers the judicial balancing of rights. Most problematically, however, such judicial balancing often comes at the expense of classical civil and political rights, such as freedom of expression. Typically, in the DSA context, this occurs when a platform’s right to conduct business is given priority over the negative impact on the speech interests of citizens.¹⁰⁴

The CJEU gradually conceptualised Article 16 as a freedom to engage in economic self-expression without being subject to unjustifiable restrictions. It ‘includes, inter alia, the right for any business to be able to freely use, within the limits of its liability for its own acts, the economic, technical and financial resources available to it.’¹⁰⁵ The cases to date disproportionality involved claims about the regulation of advertising of alcohol,¹⁰⁶ mandatory licensing of short news reports by broadcasters,¹⁰⁷ or costs of digital providers in implementing copyright enforcement measures.¹⁰⁸ The CJEU outlined that Article 16 ‘covers the freedom to exercise an economic or commercial activity, the freedom of contract and free competition.’¹⁰⁹ The freedom of contract includes the freedom to choose with whom to do business and to determine the price of a service.¹¹⁰

In cases involving the blocking of websites or content, the CJEU usually emphasised that even courts, when fashioning the relief granted to victims, must consider freedom to conduct business.¹¹¹ In other words, such considerations are not limited to the

ECLI:EU:C:1970:114; where in response to a German reference, CJEU examined a Commission decision under the right to freely choose and practice the trade and profession: Case C-4-73 *Nold* ECLI:EU:C:1974:51; and where in response to a German reference, CJEU examined an EU regulation under the freedom to pursue economic activity: Joint Cases C-143/88 and 92/89 *Zuckerfabrik Süderdithmarschen and Zuckerfabrik Soest* ECLI:EU:C:1991:65, paras 76–77.

¹⁰⁰ These were the Weimar origins of the right (arts 151–56 of the Weimar Constitution 1919); see Peers and others (n 98) 438.

¹⁰¹ However, it is questionable if this has any bearing given that other subjective rights, such as freedom of arts and sciences, are worded equally as freedoms.

¹⁰² Lord Peter Goldsmith, ‘A Charter of Rights, Freedoms and Principles’ (2001) 38(5) *Common Market Law Review* 1201, 1212

¹⁰³ *ibid.*

¹⁰⁴ Case C-314/12 *UPC Telekabel Wien GmbH v Constantin Film Verleih GmbH* ECLI:EU:C:2014:192.

¹⁰⁵ *ibid* para 49.

¹⁰⁶ Case C-544/10 *Deutsches Weintor eG v Land Rheinland-Pfalz* ECLI:EU:C:2012:526.

¹⁰⁷ Case C-283/11 *Sky Österreich GmbH v Österreichischer Rundfunk* ECLI:EU:C:2013:28.

¹⁰⁸ *UPC Telekabel* (n 104); Case C-360/10 *SABAM v Netlog NV* ECLI:EU:C:2012:85; Case C-70/10 *Scarlet Extended SA v SABAM* ECLI:EU:C:2011:771.

¹⁰⁹ *Sky Österreich* (n 107) para 42.

¹¹⁰ *ibid* para 43.

¹¹¹ *SABAM* (n 108); *Scarlet Extended* (n 108) paras 48–49.

legislature. The fact that access providers might be able to choose a method of implementation of costly and complex measures was viewed favourably as it does not fully ‘restrict the free use of the resources at his disposal’ because it provides some choice.¹¹² Moreover, this case law shows that the freedom to conduct business can equally apply in horizontal settings.¹¹³

In the context of the DSA, the freedom to conduct business might serve several functions. First, providers might rely upon it to defend against the DSA provisions. Second, the freedom to conduct business can be invoked by victims and content creators against the providers themselves. In cases where livelihoods and the functioning of business are increasingly embedded into the digital ecosystem, arbitrary and excessive actions of providers can equally be scrutinised. While for some disputes, there might be other legislative instruments, such as the Platform to Business Regulation, the Digital Markets Act or national unfair competition laws, the DSA obligations might run in parallel with them. For instance, over-restrictive efforts to mitigate risks through de-amplification can excessively interfere with the legitimate business operations of content creators on such platforms. Whenever platforms are expected to act by the DSA, they must properly account for these interests as well.

3.3.3 Freedom of readers to receive information

Article 11(1) CFR guarantees everyone a right to freedom of expression, including the freedom to hold opinions and to receive and impart information and ideas regardless of frontiers. Article 11(2) then guarantees specifically freedom and pluralism of media. The DSA potentially touches upon all of these different components. It protects speakers and readers by giving them tools against a set of private actors who organise highly visible places to exchange information and ideas.

The DSA is the single most significant piece of EU law that tries to legislatively guarantee freedom of expression in some concrete setting. While freedom of expression is often characterised by cases that protect against interferences, the digital ecosystem (as some other types of media before) has shown that such freedoms need to be equally protected from private power, whether acting as a self-interested market player or an agent of the state. In secondary EU law, the only comparable piece of legislation is the Open Internet Regulation that guarantees freedom of expression of end-users—ie readers and speakers (such as website owners and application providers) using the internet to exchange with each other.¹¹⁴ The EU is currently also preparing its European Freedom Media Act, which should target more traditional freedom of editorial media and their pluralism. The legislative efforts are best described as positive legislative

¹¹² *UPC Telekabel* (n 104) paras 50–54.

¹¹³ See also, *Peers and others* (n 98) 449, although these cases involve the state getting involved in enforcing remedies.

¹¹⁴ European Parliament and Council Regulation (EU) 2015/2120 laying down measures concerning open internet access [2015] OJ L 310/1, art 3 (Open Internet Regulation).

measures to protect freedom of expression from the encroachment of private and state powers.

With the growing secondary legislation guaranteeing freedom of expression interests, of which the DSA is the perfect poster child, its operationalisation raises a challenge for the CJEU. As pointed out by many, including Lorna Woods, '[t]he EU remains on the whole in an economic mind-set'.¹¹⁵ It, therefore, remains to be seen how the CJEU grapples with speech and due process regulation when confronting the trade-offs with the single market harmonisation and restrictions on economic freedoms.

3.4 Institutional Blind Spots

Multi-party balancing demands intensive fact-finding and understanding of one's institutional blindness. Some stakeholders very rarely or never appear before the institutions that interpret the law.

Daphne Keller refers to this as a 'Three-Body Problem'.¹¹⁶ She points out that absent parties often might have the most important interests in the disputes between two litigating parties. This problem is hard to overcome. Careful calibration of the balancing exercise is, therefore, required to consider the situations holistically. As argued by Keller, this sometimes means that the legislature, rather than the judiciary, is the only viable forum. Institutional blindness affects all institutions, but it affects courts more than the legislature. In a way, it explains why the Strasbourg court is hesitant to be too prescriptive in its case law.

The DSA is a genuine effort to deal with the problems prescriptively and horizontally by considering all interests. It opens the disputes up into more avenues and thus allows more parties to articulate their concerns.

Firstly, the Digital Services Coordinators and the EU Commission have it directly included in their mandate to consider the manifold interests of all the groups as their enforcement responsibilities. They also oversee *all* types of content and are therefore less likely to be captured by the narrative of one set of victims with distinct needs. In the context of VLOPs, the DSA focuses on due process and speech risks alongside risks to children, public security, and health risks, meaning that the risk of under-enforcement should be continuously considered against the risks of over-blocking (eg aggressive reduction of disinformation regarding health claims is also viewed in considering the impact on legitimate content).

Second, the DSA articulates several tools, such as collective redress, that should help proactively bring the interests of affected parties before the CJEU. Through the likely privatisation of enforcement of DSA obligations on the national level, such parties do not have to rely on the middleman of the state authorities to defend them. They can proactively defend their interests which were difficult to defend until now.

¹¹⁵ Steve Peers and others, *The EU Charter of Fundamental Rights: A Commentary* (Hart Publishing 2014) 337.

¹¹⁶ Keller (n 5).

However, some institutional limits of CJEU will remain a problem. Unlike in Strasbourg,¹¹⁷ the preliminary reference procedure under Article 267 TFEU does not allow for third-party interventions.¹¹⁸ This often means that the CJEU is not fully aware of the impact on non-parties, as the states rarely articulate how certain enforcement measures might influence the public's right to access information. Since the parties are just as generally not well-placed or even motivated to advance these arguments, the CJEU is missing relevant pieces of information. As a result, some cases which require multi-party balancing then deliver sub-optimal outcomes for freedom and rights that were not part of the conversation. Consequently, this places pressure on the Advocate Generals to be able to represent those forsaken views.

For instance, in the *UPC Telekabel* case, the CJEU adopts the view that the open-ended forms of website blocking better respect the rights of obliged access providers, as they can choose their method of implementation.¹¹⁹ Little does the Court realise that such injunctions increase the risk of over-blocking legitimate content, as they allow the same providers to adopt measures that are overly broad but cheap to implement. Similarly, in *Google Spain* and *Glawischnig-Piesczek*,¹²⁰ the CJEU adopted particular content blocking or de-amplification standards without properly considering their impact on speakers or readers and paid most of the attention to consequences for platforms and their economic interests. Yet, the latest case of *Poland* shows that when the CJEU is asked to address freedom of expression directly, it can do so very sensibly.¹²¹

To address this institutional blind spot, the decision-makers must address the remaining shortcomings of the regulatory setup.

One possibility is to permit third-party interventions in cases brought to the CJEU, as is successfully practised in Strasbourg.¹²² This would allow civil society to articulate arguments that were unaccounted for and supplement the lack of representation of some parties. While prior to the DSA, there was no agency to properly represent the interests of speakers and readers, this will change, at least in theory. In practice, it is still questionable to what extent the EU Commission, as the enforcer of the DSA, can properly and credibly reconcile all viewpoints, given that some of them might sometimes be in opposition to the goals that the Commission tries to achieve. But given that under the DSA, at least some administrative decisions will be made by the EU Commission, their judicial review might allow third parties to intervene before the CJEU.¹²³ However, in all other cases before the CJEU that interpret the DSA, including those originating from actions against national regulators, in the years to come some voices will not be heard in Kirchberg. That is unless procedural rules in Luxembourg change.

¹¹⁷ Registry of the Court, Rules of the Court (ECHR), r 44; delineating the procedure for third-party interventions.

¹¹⁸ Protocol on the Statute of the CJEU [2012] OJ C203/72, arts 23 and 23(a).

¹¹⁹ *UPC Telekabel* (n 104).

¹²⁰ *Google Spain* (n 91); Case C-18/18 *Eva Glawischnig-Piesczek v Facebook Ireland Limited* ECLI:EU:C:2019:821.

¹²¹ *Poland* (n 31).

¹²² Matthias Jacobs, Matthias Münder, and Barbara Richter, 'Subject Matter Specialization of European Union Jurisdiction in the Preliminary Rulings Procedure' (2019) 20(8) German Law Journal 1214, 1230–31.

¹²³ Protocol on the Statute of the Court of Justice of the European Union [2012] OJ C203/72, art 40; Rules of Procedure of the General Court OJ L 105, 23 April 2015, pp 1–66, art 143.